

THE SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

THE CITY OF NEW YORK,

Plaintiff,

-against-

THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK; WEST 42nd STREET DEVELOPERS, LLC; BABY'S WEST 42 LLC; "JOHN DOE" and "JANE DOE," fictitiously named parties, true names unknown, the intended being the owners, lessees, operators or occupants of the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York; and any person claiming any right, title or interest in the real property which is the subject of this action,

Defendants.

Evan Gluck, an attorney admitted to practice before the courts of this State, affirms the truth of the following under the penalties of perjury pursuant to § 2106 of the Civil Practice Law and Rules:

1. Plaintiff is exempt from the notice requirement set forth in Section 202.7(f) of the Uniform Rules for New York State Trial Courts because it will suffer significant prejudice for the following reasons.

2. This action is being brought under Title 7 of the Nuisance Abatement Law which allows the *ex parte* issuance of a Temporary Restraining Orders. Said statute specifically exempts these actions from any notice requirement.

**AFFIRMATION OF
GOOD FAITH**

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3. This action is premised on alleged criminal conduct on the part of some or all of the Defendants. The Defendants are already on notice in that they know or should know that their conduct is prohibited.

4. The criminal conduct which is the subject of this action, *to wit*, the unlicensed sale, consumption and warehousing of alcoholic beverages, is known to interfere with the quality of life in the surrounding neighborhood.

5. Because this action is premised on criminal conduct, giving prior notice to the defendants may endanger the safety of those enforcing and affected by the Temporary Restraining Order, *to wit*, police officers, attorneys and civilians in the area.

DATED: New York, New York
January 28, 2025



Evan Gluck, Esq.